

2014 SCC OnLine All 1387

(BEFORE VINEET SARAN AND RAMESH SINHA, JJ.)

Vineet Plastics Ltd. Petitioner

v.

Purvanchal Vidyut Vitran Nigam Ltd. and Another .

.... Respondents

Counsel for Petitioner:- Bidhan Chandra Rai

Counsel for Petitioner:- Mahboob Ahmad, R.K. Misra

Writ - C No. - 4141 of 2014

Decided on January 27, 2014

Hon'ble Vineet Saran, J.

Hon'ble Ramesh Sinha, J.

Heard Sri. B.C. Rai, learned counsel for the petitioner, Sri. R.K. Mishra, learned counsel for the respondent Corporation Corporation and perused the record.

Earlier on 22.1.2014, time was granted to Sri. R.K. Mishra, learned counsel for the respondents Corporation to obtain instructions, which he states that he has received.

With the consent of learned counsel for the parties this petition is being decided without calling for a counter affidavit.

The petitioner is a Company which has obtained an electricity connection from the respondent Corporation. An inspection was carried out in the premises of the petitioner Company on 1.10.2013 and provisional assessment bill was thereafter given to the petitioner on 11.10.2013 which was for an amount of Rs. 92,30,113/-. Compounding fees of Rs. 43,00,000/- was also imposed, which the petitioner has paid and thereafter, the electricity connection of the petitioner has been restored. In respect of the earlier proceedings relating to inspection, the petitioner had filed a Civil Misc. Writ Petition(C) No. 61773 of 2013 primarily with the prayer for a direction to respondents to send the energy meter for testing to an independent test laboratory and for giving copy of the MRI reports. As the petitioner was required to submit its reply to the provisional assessment bill, the said writ petition was disposed of by this Court on 12.11.2013 with the direction that the application of the petitioner in this regard shall first be decided before passing any final order regarding the final assessment.

It is admitted to the parties that the said application of the petitioner has not yet been decided. Sri. R.K. Mishra, learned counsel for the respondents Corporation states that the same shall be decided by the respondents Corporation very shortly.

The dispute in the present writ petition is not with regard to the earlier inspection and provisional assessment bills, but with regard to the monthly bills for the period subsequent to the inspection.

It is contended that for the period after inspection, the provisional monthly bill (undated) for the month of October 2013 has been given, which is for a sum of Rs. 5,11,850/-, against which the petitioner has 'under protest' deposited a sum of Rs. 2,75,000/- on 23.11.2013. Thereafter for the month of November, 2013 another undated bill of Rs. 5,06,953.53/- has been issued, which is also a provisional bill and in the said bill, arrears of Rs. 2,36,850/- has been shown. Against the said bill, on the basis of self assessment, petitioner has again, under protest, deposited a sum of Rs. 2,85,000/- and submitted his objections on 20.12.2013. Then again, without deciding the objections, the respondent Corporation continued to issue provisional monthly assessment bill and this time for the month of December 2013 the provisional bill was for a sum of Rs. 4,75,285/- plus Rs. 7,43,804/- as arrears. Against the same, the petitioner has deposited a sum of Rs. 2,85,000/- on 4.1.2014. The said facts are not disputed by the learned counsel for the respondent Corporation.

The primary objection of the petitioner is that though there is provision for issuance of provisional assessment bill under Section 126 of the Electricity Act, but the same is to be issued only after an inspection is conducted and time for filing objection to the such bill is given to the consumer. It is contended that there is no other provision in law for issuance of provisional assessment bill except for one under Clause 6.2 (b) of the Electricity Supply Code, 2005 which is also only in such situation where the meter reading cannot be taken. Another provision which relates to dispute of any bill, is Clause 6.5 of the aforesaid Supply Code, wherein dispute with regard to regular bill by the Corporation can be raised by the consumer.

According to the petitioner, the present is a case where regular monthly bills are being sent as provisional assessment bills without there being any provision for the same. It is further submitted that the objection of the petitioner which has been given in writing to the respondent Corporation is to the effect that there is vast difference between the reading of the meter installed at the premises of the petitioner and one which is installed at the electricity supply pole by the respondent

Corporation. It is contended that the petitioner is being sent the provisional monthly bills on the basis of meter installed at the premises of the petitioner, which has been replaced after inspection and is not giving correct reading, as according to the petitioner there is not minor but major variance in the reading of the two meters installed.

On being asked Sri. Mishra, learned counsel for the respondent Corporation could not point out any provision under which the monthly provisional assessment bills can be given to the petitioner (consumer) and that too without giving any opportunity to raise objection which could be decided.

Series of provisional assessment bills cannot be given until there is provision in the Statute or Electricity Supply Code for the same.

Sri. Mishra, learned counsel for the respondent Corporation, on having received instructions, has stated that there has been a mistake on the part of the Corporation in issuing such provisional bills and such mistake will be rectified.

In view of the aforesaid, the provisional monthly bills for the months of October, November and December, 2013, filed as Annexure nos. 4, 7 and 9 to the writ petition are quashed. The respondent Corporation shall be at liberty to rectify the said bills. In case, the fresh bills, issued as per the provisions of law, are for an amount over and above the amount which has been paid by the petitioner, the petitioner shall be liable to pay the excess amount; and in case the bills are for a lesser amount which has been paid by the petitioner, then the same shall be adjusted in future bills, after adjusting the interest which would be liable to be paid to the petitioner.

It is provided that in case any checking meter is installed, that shall be done at the own expense of the respondent Corporation as they themselves admit that there is variance in the two meters which have been installed, one at the premises of the petitioner and other on the pole supplying electricity to the petitioner.

Accordingly, this writ petition stands allowed to the extent indicated above. No order as to costs.

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